



TRANSFER OF PROPERTY – THE PROCESS, STEP BY STEP

Congratulations on the sale or purchase of your property. Transfer is a process with a number of moving parts, most of which depend on third parties — banks, the municipality, SARS and the Deeds Office — rather than on us alone. So that you know what to expect, we set out below each step of the process, what we attend to, and where we will need something from you. A straightforward transfer usually takes **eight to twelve weeks** from the date the agreement becomes unconditional.

- 1 Instruction and opening of the file** DAY 1–3
We receive the signed Offer to Purchase from the estate agent or the parties, open the file, and write to both the purchaser and the seller confirming our appointment and what we will need.
- 2 Due diligence on the title** WEEK 1
We obtain a copy of the existing title deed from the Deeds Office and examine it for conditions of title, servitudes, restrictions and any interdict registered against the property. We also diarise every suspensive condition in the agreement — most often the purchaser's bond approval — so that the deadlines are not missed.
- 3 FICA, documents and signature** WEEK 2–3
We prepare the transfer documents: the power of attorney to pass transfer, the declarations by both parties and the transfer duty declarations. You will be asked to attend at our offices to sign, or we will arrange signature through a correspondent if you are not in Pretoria.
FROM YOU identity document, proof of residential address, marriage certificate or antenuptial contract, income tax number and bank details.
- 4 Transfer duty and clearances** WEEK 3–6
We apply to SARS for the transfer duty receipt or exemption, and to the local authority for the rates clearance certificate — which requires the seller's municipal account to be paid several months in advance. Where the property falls in a sectional title scheme or an estate, we obtain the levy clearance and the consent to transfer from the body corporate or homeowners' association.
FROM THE SELLER funds for advance rates and levies, and the compliance certificates — electrical, and where applicable gas, electric fence, plumbing and beetle.
- 5 Guarantees and funds** WEEK 4–7
The purchaser's deposit is held in our trust account in an interest-bearing account for the purchaser's benefit. We request cancellation figures from the seller's bank and, once the purchaser's bond is ready, the bond attorney issues guarantees for the balance of the purchase price. We check that the guarantees cover what the seller's bank requires to cancel the existing bond.
- 6 Drafting the deed and preparation for lodgement** WEEK 7–8
We draw the deed of transfer — the new title deed to be registered in the purchaser's name — and send a draft to the bond attorney and the cancellation attorney so that all three sets of deeds agree with one another. With the signed documents, the transfer duty receipt, the clearance certificates and the guarantees in hand, the deeds are then prepared for lodgement and we arrange that all three sets are lodged at the Deeds Office on the same day — they must be registered simultaneously.

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Lodgement and examination

7–10 WORKING DAYS

The deeds are lodged and examined by the Deeds Office. Examiners check every document for accuracy and for compliance with the Deeds Registries Act. If a deed is rejected it must be corrected and re-lodged, which adds time. We monitor the batch daily and will tell you as soon as it comes up "on prep".

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Registration

REGISTRATION DAY

Once the deeds are in order, the conveyancers appear before the Registrar and the deed is executed. **At that moment ownership passes to the purchaser**, the new bond is registered and the seller's bond is cancelled. We telephone both parties and the estate agent on the day.

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Payment and handover

WITHIN DAYS

We settle the seller's existing bond, pay the estate agent's commission and any outstanding rates, and pay the balance of the proceeds to the seller. Both parties receive a detailed statement of account. Occupation and keys pass in accordance with the agreement, and the registered title deed is delivered to the purchaser — or to the bank where a bond is registered — once the Deeds Office issues it.

THREE ATTORNEYS, ONE REGISTRATION

- ▶ **The transferring attorney** — appointed by the seller, attends to the transfer itself and co-ordinates the whole process. This is our role.
- ▶ **The bond attorney** — appointed by the purchaser's bank, registers the new bond.
- ▶ **The cancellation attorney** — appointed by the seller's bank, cancels the existing bond.

All three lodge together and register together. A delay by any one of them delays the registration for everybody.

WHAT USUALLY CAUSES DELAY

- ▶ Bond approval not issued, or issued on different terms to the agreement;
- ▶ Rates clearance figures — municipalities are frequently slow, and the account must be paid months in advance;
- ▶ Outstanding levies, or an estate withholding its consent to transfer;
- ▶ Compliance certificates not obtained, or repairs required before they can be issued;
- ▶ FICA documents outstanding — we may not proceed without them;
- ▶ Rejection at the Deeds Office, which puts the batch back by a week or more.

WHAT YOU CAN DO TO KEEP IT MOVING

Send us your FICA documents as soon as you receive our letter, sign when we call you in rather than at your convenience, and — if you are the seller — keep your municipal account and levies paid up and arrange your compliance certificates early. Nearly every transfer that runs late does so for one of those reasons. If anything about your matter is unclear at any stage, please telephone us; we would far rather explain twice than leave you wondering.

YOUR MATTER IS HANDLED BY

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Please quote our reference in all correspondence. You are welcome to telephone at any stage for an update.

BEFORE YOU PAY ANYTHING

Large sums move during a transfer, and conveyancing payments are a common target for interception. **Our banking details do not change.** We will never email you new or amended account details. Before you make any payment, telephone this office on a number you have verified independently and confirm the account details with us verbally.